ASMDEV INCORPORATED (PVT) LTD
versus
JOHAND LEWIS INVESTMENTS (PVT) LTD
and
JOHANNE CHARASA
and
KNOWLEDGE MAZIVANHANGA
and
PETER MARENGU

HIGH COURT OF ZIMBABWE
TAKUVA J
Harare30 September 2025 and 16 February 2026

Urgent Chamber Application

E.Chibondo, for the applicant.
E.Chihombori, for the respondents

TAKUVA J: The Applicant and the Respondents are involved in numerous cases in this court. Most of them are pending. One such case is HCH 2159/25 wherein I ordered as follows:

> "Pending determination of this matter, the Applicant is granted the following relief:
> 1. The first, second, third and fourth Respondents, their workers, subordinates, nominees and agents be and are hereby interdicted from carrying out mining activities at the disputed … Mining Site.
> 2. The officer in charge at Concession Police Station, his subordinates, nominees and agents be and are hereby ordered to assist in the execution of this order showed the need arise."

Aggrieved by this provisional order, the Respondents appealed to the Supreme Court. Believing that the appeal was unmerited, frivolous, vexatious and meant to buy time. The Applicant filed this application seeking leave to execute pending appeal. The Respondents opposed this application.

Whilst the court was preparing judgment in (HCH 4680/25) this case, the Supreme Court heard and determined the appeal under SC 645/25. The result is that the Supreme Court dismissed the appeal with costs, meaning that this application for leave to execute pending appeal is now moot.

In the result, it is ordered:

1. The application for leave to execute pending appeal has been overtaken by events and has become moot.
2. The matter is struck off the roll.
3. There shall be no order as to costs.

TAKUVA J:.....

Gumbo and Associates legal Practitioners, for the Applicant.
Simba and Partners legal Practitioners, for the espondent.